

*subsequent assurances*), the mortgagee of the said property (*or holder of the said lien*), and entitled to the principal money and interest remaining due upon the mortgage (*or lien*); and the said A. B. believes that the said amount of the principal money and interest now due upon the said mortgage (*or lien*) is the sum of £—, or thereabouts: and he has made, or caused to be made, an application to the said C. D. to receive the said sum of £—, and any costs justly payable to him, and to reconvey to the said A. B. the said mortgaged property (*or property subject to the said lien*), upon payment thereof, and of any costs due to him in respect of this security, but that the said C. D. has not so done. To the end therefore that the said A. B. may be let in to redeem the said mortgaged property (*or property subject to the said lien*), and that the same may be reconveyed (*or delivered up*) to him upon payment of the principal money and interest, and costs due and owing upon the said mortgage (*or lien*); and for that purpose that all proper directions may be given and accounts taken.

(*And for further relief; pray subpoena.*)

The above follows the English form No. 7.

Compared with English form.

These forms will all necessarily have to be varied according to circumstances, and such variance will be no violation of the above Order 2, which says that bills *may* be in such forms; and see *Hanson vs. Games*, 14 Jurist, 543. As an instance of the necessity for varying the form, may be named, the case of a bill to redeem where the mortgagee has been in possession, and has overpaid himself out of the rents and profits of the estate. In such a case it would be clearly wrong to use the above form 8, where it tenders costs. That part of it must be omitted, and an allegation inserted of the special circumstance, see *Toon vs. Cotterill*, 14 Jurist, 846. It will be seen by subsequent Orders that ample care is taken that the pleadings shall not be extended to an undue length. See the Orders as to costs. At the same time it is very evident, that, where the parties to a bill are numerous, and the circumstances complicated, it must be impossible to compress the pleading into anything like the short forms here given.

Necessity for sometimes varying the forms.